

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

May 26, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5**.

To access the courtroom, click or copy and paste this link into your internet browser and scroll to

Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	20CV366946	Rajesh Raghani vs. Samir Maharjan, et.al.	Defendant moves this court to grant relief from previous order to deem admissions as true. Defendant cites that hisan mother passed away in April 2022 and his father passed away in November 2022 and he was in a period of one year religious mourning in Nepal. However the request for admissions by plaintiff were not filed until November 30 2023, one year after the unfortunate events. This court finds that Defendant's failure to answer does not constitute excusable neglect. Defendant's motion is DENIED.
9:00 2-3	22CV408165	Andrew Mo vs Samsung Research America, Inc.	Defendant moves this court to reconsider its earlier ruling calculating the tolling statute incorrectly. Court disagrees. CCP section 1008 does not permit a party to withhold and alternating argument, lose, and then select to litigate the issue in a motion for reconsideration. There are no new facts presented here by the Defendant. In fact, Defendant originally made the argument that CCP section 356 did not apply, but now argues that the section applies and the tolling statute was miscalculated by court. It is late in the day to bring up this new theory, even if the tolling numbers were incorrect. Defendant's motion to reconsider Plaintiff's demurrer motion is DENIED. Defendant's motion to reconsider Plaintiff's motion to lift stay on discovery is DENIED.
9:00 4	23CV410155	Kui Ma vs Hau-Ching Liao, et. al.	Defendant Liao filed a motion for terminating sanctions on April 14, 2026 against Plaintiff and Cross-Defendant. Neither Plaintiff nor Cross-Defendant filed answers opposing Defendant Liao's motion. Defendant Liao's motion is GRANTED.
9:00 5	24CV436120	Kelly Maycock vs. Matthew Santiago, et.al.	Plaintiff petitions this court to Compel Further Discovery Responses and Document Production. Plaintiff's RFP 49-51, 57, and 58 all are requests for communications regarding Plaintiff. Plaintiff's petition to Compel Further Discovery Responses as to RFP 49-51, 57 and 58 are overbroad and vague. Plaintiff's petition to Compel Further Discovery Responses as to RFP 49-51, 57 and 58 are DENIED. Plaintiff's requests for RFP 52-54 require documents relating to attorney work product and is therefore privileged. This court does not find the recent case Paknard persuasive as the discovery dealt with a third party investigation while UPS completed an internal report and provided documents to Plaintiff. Plaintiff's petition to Compel Further Discovery Responses as to RFP 52-54 are DENIED. RFP 55 seeks communication regarding grievances against Defendant Santiago. Court finds this request relevant. Plaintiff's petition to Compel Further Discovery Responses as to RFP 55 is GRANTED. RFP 59 seeks communications regarding elimination of Mr. Santiago's position. Plaintiff's petition to Compel Further Discovery as to RFP 59 is GRANTED. Plaintiff's petition to Compel Further Discovery as to RFP 60-61 (request for native versions of investigative reports and interview notes) is GRANTED. Plaintiff's petition to Compel Further Discovery as to RFP 63-66 for investigative reports and interviews covering Plaintiff's sexual harassment claims is relevant and is GRANTED. As to RFP 70, Defendant responded that document does not exist. Plaintiff's petition to Compel Further Discover as to RFP 70 is DENIED. Plaintiff's motion for sanctions is DENIED.
9:00 6	25CV465011	Jinan Zhongrunze Information Service Center vs. Zhanxu Qian	Plaintiff files a motion to strike defendant's jury trial demand. This court recognizes that the Recognition At codifies common law foreign judgment enforcement actions and as such, are tried before juries. (Manco Contracting v. Bezdikian (2008) 45 Ca.4 th 192, 198.) Plaintiff's motion is DENIED.

9:00 7	25CV480218	Jeremy Ryan vs Apple Inc.	See below
9:00 8	25CV481843	Velocity Investments vs. Shaina Garcia	Case off calendar
9:00 9-10	25CV458845	Valerie Phillips vs Warren Outlet 957	OFF CALENDAR
9:01 2	24CV443177	Jake Pauer vs Santa Clara Electrical Joint Apprenticeship and Training Trust	Plaintiff's attorney moves to be relieved as counsel. Plaintiff's motion is GRANTED.
9:01			

Line 7

Calendar Line 7

Case Name: *Ryan v. Apple Inc.*

Case No.: 25CV480218

Defendant Apple Inc. (“Defendant” or “Apple”) demurs to the first amended complaint’s (“FAC”) first cause of action for false advertising in violation of Business and Professions Code section 17500 and second cause of action for unfair business practices in violation of Business and Professions Code section 17200.

“[T]o state a claim under either the UCL or the false advertising law, based on false advertising or promotional practices, ‘it is necessary only to show that ‘members of the public are likely to be deceived.’” (*Bernardo v. Planned Parenthood Federation of America* (2004) 115 Cal.App.4th 322, 356; see also *Lavie v. Procter & Gamble Co.* (2003) 105 Cal.App.4th 496, 508 (stating that “[l]ikely to deceive” implies more than a mere possibility that the advertisement might conceivably be misunderstood by some few consumers viewing it in an unreasonable manner... [r]ather, the phrase indicates that the ad is such that it is probable that a

significant portion of the general consuming public or of targeted consumers, acting reasonably in the circumstances, could be misled”).) The first and second causes of action allege that the phrase “panel of judges” as used to describe the people evaluating the contestants on the reality show *Killer Whales* is deceptive because it “suggest[s] credible evaluators acting in a gatekeeping or vetting role.” (FAC, ¶¶ 7-12, 22-27, 32-35.) However, the applicable definition of a judge in this situation is “one appointed to decide in a contest or competition.” (Webster’s 9th New Collegiate Dict. (1991), p.653; see also Merriam-Webster, “Judge,” Merriam Webster.com Dictionary <<https://www.merriam-webster.com/dictionary/judge>> (as of May 19, 2026).) As a matter of law, the first and second causes of action fail to allege facts demonstrating a likelihood of deception. (See *Brockey v. Moore* (2003) 107 Cal.App.4th 86, 100 (stating that “the primary evidence in a false advertising case is the advertising itself”); see also *Hill v. Roll Internat. Corp.* (2011) 195 Cal.App.4th 1295, 1301 (stating that “a demurrer must be sustained when the assumed facts show lack of a valid claim” for violation of sections 17200 or 17500); see also *Rubenstein v. The Gap, Inc.* (2017) 14 Cal.App.5th 870, 877 (stating that “courts can and do sustain demurrers on UCL claims when the facts alleged fail as a matter of law to show such a likelihood... of deception”); see also *Brady v. Bayer Corp.* (2018) 26 Cal.App.5th 1156, 1165 (stating that “[i]f a claim of misleading labeling runs counter to ordinary common sense or the obvious nature of the product, the claim is fit for disposition at the demurrer stage of the litigation”); see also *Seelig v. Infinity Broadcasting Corp.* (2002) 97 Cal.App.4th 798, 800-801 (stating that in “[r]eality television... real people often compete for a prize under the most unrealistic, often demeaning conditions”).) Additionally, in opposition, Plaintiff fails to cite to any case authority to support his position. (See *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 (stating that when a party “fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”); see also *Arega v. Bay Area Rapid Transit Dist.* (2022) 83 Cal. App. 5th 308, 318 (stating same); see also *City of Palo Alto v. Public Employment Relations Bd.* (2016) 5 Cal.App.5th 1271, 1302 (Sixth District stating that “[w]hen points are perfunctorily raised without adequate analysis and authority, we may treat them as abandoned or forfeited”).) Further, Plaintiff does not demonstrate how the

causes of action may be amended. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (California Supreme Court stating that “Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading”); see also *Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636 (stating same).) Defendant’s demurrer to the first and second causes of action is SUSTAINED without leave to amend.

Defendant shall prepare and submit a proposed order consistent with the Court’s tentative ruling.